

San Jose residents want police chief out after Flock camera misuse



by [Joyce Chu](#) October 1, 2026



A coalition of groups including SIREN, Working Partnerships USA, Electronic Frontier Foundation and more are demanding San Jose cancel its contract with automatic license plate reader company Flock Safety and conduct an audit of the local surveillance system. Photo by Joyce Chu.

Community advocates are calling for San Jose's police chief to step down, after revelations that a police officer used license plate tracking technology to help his

cousin stalk a woman she alleges abused her.

In addition, a coalition of groups — including Safety over Surveillance, Services, Immigrant Rights and Education Network (SIREN), Working Partnerships USA, Electronic Frontier Foundation, Amigos de Guadalupe Center for Justice and Empowerment and more — are demanding San Jose cancel its contract with [surveillance company Flock Safety](#) and conduct an audit on its system of automatic license plate readers.

“Mass surveillance does not keep us safe, it keeps us afraid and endangers all of our visitors to our beloved San Jose,” Kimberly Woo, an organizer with SIREN, said at a Wednesday rally. “Real public safety comes from investing in people, strengthening communities, protecting the rights and dignity of all residents.”

The SJPD officer was fired in April after a yearlong investigation that found he had illicitly accessed license plate reader data on his phone, according to the [Mercury News](#). The police department was first informed of the incident in February 2025 after the woman reported that the man knew her whereabouts.

City officials have [repeatedly reassured](#) residents that Flock cameras are safe and secure, despite incidents that point to the contrary. In March, while the investigation was ongoing, Police Chief Paul Joseph told the City Council that “our audits have shown that our license plate reader data has not gone anywhere it isn’t supposed to go.”



Kimberly Woo, an organizer with SIREN, said the San Jose Police Department breached its trust with the public at a rally held on Sept. 30, 2026. Photo by Joyce Chu.

Deputy Police Chief Macedonio Zuniga said he couldn't address why Joseph was not forthcoming about the investigation.

"I can't speak to what was occurring at the time or where this investigation was at the time," Zuniga told San José Spotlight.

Advocates said these incidents breach public trust and spell a lack of transparency within SJPD.

"The city's reliance on these cameras creates new threats, and there's no amount of safeguards that can truly eliminate the possibility of abuse," Woo said.

City officials are considering ways to create more safeguards for automatic license plate readers, after [tightening controls](#) once already earlier this year. Two separate proposals — one put forth by Mayor Matt Mahan, Vice Mayor Pam Foley and

Councilmembers Domingo Candelas and George Casey, and another written by Councilmembers Rosemary Kamei, Anthony Tordillos, David Cohen and Michael Mulcahy — aim to make it harder for city employees to use personal devices to access data from license plate readers. They would also expand audits designed to catch illicit searches.

At the San Jose Rules and Open Government Committee meeting on Wednesday, the five councilmembers on the committee unanimously voted to have staff analyze the work needed to bring the proposals forward, and bring it back to the committee in a few weeks time. Then the policy will go before the full council to vote on its implementation.

Foley said the memos do not address the demands advocates have to cover the cameras and end the Flock contract since city council makes the final decision, not the rules committee.

“I can’t express enough how concerned we are about the breach, so I look forward to having this formal discussion with council and how we’re going to move forward, and with the police chief present because his input is important as well,” Foley said at the meeting. “We did listen to him in March, and we had established guardrails that we all thought would be successful. Turns out, they weren’t, and it’s very, very alarming.”

In March, councilmembers adopted a [range of new safeguards](#) for San Jose’s network of 474 cameras, including limits on where the devices may be installed and how long license plate data may be stored.

But the latest incident further exposes the gaps in accountability that exist with automated license plate readers, which have come under increasing scrutiny in recent months. In November, a coalition of local advocacy groups [sued San Jose](#), alleging the city’s practice of allowing warrantless searches of its license plate data violates drivers’ privacy rights.

Earlier this year, South Bay jurisdictions—including Santa Clara County, Los Altos Hills and Mountain View — [terminated their contracts with Flock Safety](#), amid concerns the company has allowed [transfers of license plate reader data](#) to out-of-state law enforcement agencies, a practice barred by state law.

Zuniga said SJPD will follow the city council’s lead on using surveillance cameras.

“We’re going to look at the workload to see everything that we can do to ensure

that we leverage our technology responsibly and ethically,” he said.

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Greg Ramos, an advocate with Safety over Surveillance, said the city needs to take decisive action in ending the Flock contracts and ensuring the safety of residents.

“Everybody’s always playing hot potato with the responsibility of things, and then they always say, ‘We’re going to come back to it when the data is available,’” he told San José Spotlight.

Contact Joyce Chu at joyce@sanjosespotlight.com or [@joyce_speaks](https://twitter.com/joyce_speaks) on X.